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October 5, 2026

Esther Kolni, General Counsel
Frisco Independent School District
5515 Ohio Drive
Frisco, Texas 75035
kolnie@friscoisd.org

By email

Re: Notice to preserve documents and electronically stored information. Grievance References Z005911-061526 and Z006179-091626; TEA Docket Nos. 120-R10-06-2026 and 159-R10-07-2026; Public Information Act Requests W005772-052226, W005970-062526, and W006006-071626.

Ms. Kolni:

I write to give the District formal notice of its obligation to preserve all documents, communications, and electronically stored information relating to me and to the matters described below. I anticipate filing suit against the District and certain of its employees arising from the July 7, 2026 Summary of Investigation and the events that preceded and followed it. The District has already represented to the Office of the Attorney General that it reasonably anticipated litigation with me. Open Records Letter Ruling OR2026-041431 (September 18, 2026). The duty to preserve is therefore not new, and this letter is intended to confirm its scope.

Please take immediate steps to preserve, and to suspend any routine deletion, overwriting, or destruction of, the following materials, in whatever form they exist, for the period August 1, 2025 to the present and continuing.

1. All communications to, from, copying, or concerning me or my son, including email in District accounts and in any personal account used for District business, text messages, voicemail, instant messages, and messages sent through any team messaging or club management application used by Iron Horse Aquatics, including SportsEngine.
2. All records of the Parent Code of Conduct investigation opened on or about June 9, 2026, and of the investigation underlying the July 7, 2026 Summary of Investigation, including notes, drafts, witness statements, interview records, the identities of every person who provided information, the dates on which information was received, and every document relied on.
3. All records relating to the NWAA Memorial Classic held on or about June 5, 2026 in Bentonville, Arkansas, including any report, statement, email, or other communication received

from meet officials, volunteers, venue staff, the host club, North Texas Swimming, or USA Swimming.

4. All records relating to the determination to refuse me entry to or eject me from District property, including any determination by a school administrator, school resource officer, or school district peace officer, any record of a verbal warning, and any written notice of the appeal process, as described in Texas Education Code Section 37.105.

5. All records relating to my grievances, including References Z005911-061526 and Z006179-091626, and their Level I, Level II, and Level III proceedings; the July 20, 2026 finding; the August 12, 2026 Level I decision; the August 26, 2026 Level II conference, including any notes or recording; the September 14, 2026 Level II decision; the designation of the Level II hearing officer; and all materials prepared for or provided to the Board of Trustees.

6. All records relating to Lighthouse Services Report 9022620263313, filed February 26, 2026, and any review, investigation, or disposition of it.

7. The Google Slides presentation titled “IH Group Information slideshow for website,” document ID 1gXP0fxHRzoLWqrhMkqqHdZqVQidkp-n8j-_TAmuabGw, together with its complete version and revision history, sharing and ownership records, and any prior or superseded version of Iron Horse Aquatics group placement or advancement criteria, including website content management and change logs for ironhorseaquatics.net.

8. All records of Iron Horse Aquatics group placement and advancement decisions for the 2025–2026 and 2026–2027 seasons, including any criteria, rubrics, time standards, or communications applied to those decisions.

9. System, access, and error logs for the District’s complaint portal for my account, including for May 19 and 20, July 20 and 21, August 18, and September 16, 2026.

10. All records responsive to my Public Information Act requests W005772-052226, W005970-062526, and W006006-071626, including all information submitted to or withheld following rulings of the Office of the Attorney General.

11. All records relating to my filings with the Texas Education Agency in Docket Nos. 120-R10-06-2026 and 159-R10-07-2026, and to my report to the U.S. Center for SafeSport.

This obligation extends to every District employee, officer, agent, and contractor who may hold relevant materials, including without limitation Melissa Howard, Matthew Franks, Daiki Sato, Justin Bilgri, Deidra Rucker, U’iLani Womble, Chris Burtch, Shelley Anderson, the Complaint Resolution office, Natatorium staff, any District police or security personnel, Dr. Todd Fouche, Wayne Sorrels, and yourself. It extends to personal devices and accounts that any of these individuals used to communicate about these matters. Please notify each of them, and any vendor that holds District data on these subjects, including the District’s email and document platform providers, SportsEngine, and Lighthouse Services, of the obligation to preserve.

Please preserve electronically stored information in its native format with metadata intact. Converting it to paper or image formats, or forwarding it, is not a substitute for preserving the original.

I ask that you confirm in writing by October 16, 2026 that the District has issued a litigation hold covering these materials and has notified the custodians identified above.

Nothing in this letter waives any right, claim, objection, or remedy, all of which are reserved. This letter does not replace or limit any pending request for records or any obligation the District already has.

Sincerely,

Stephen Ray Jordan
Pro se

cc: Dr. Todd Fouche, Superintendent
Wayne Sorrels, Staff Attorney
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